

AUSTIN MAYOR AND COUNCIL

# Austin City Council set to vote on the future of APD's license plate reader program

One city council member is calling to end the program amid privacy concerns.

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Police Department's (APD) license plate reader pilot program.

This comes after privacy concerns were raised by some council members during the May [Special Audit and Finance Committee](#) meeting.

"I think the privacy trade-offs are too severe," said Mike Siegel, councilmember for District 7.

Siegel is calling for the pilot program to end, while Austin Police Association President Michael Bullock said that would undo years of work and is counterproductive.

"There have been no signs where it's being abused, misused. There aren't any major alarms that are being raised," Bullock said.

While the audit found that automated license plate readers (ALPRs) generally complied with policy requirements set by the city council, it could be improved.

One point of contention among multiple council members is a lapse in the Flock safety contract language that could allow the private company to share APD's data with outside agencies. The city has 40 fixed Flock Safety cameras around the city and 500 Axon cameras mounted on police vehicles.

The city's legal team said they raised concern about that portion of the Flock Safety contract, but after a verbal agreement with Flock, the department decided to move forward with the contract.

District 2 Councilmember Vanessa Fuentes was not happy about the vague language.

"That does not give me trust as a policymaker in the legal department that we can have an audit come back that has such a tremendous finding," Fuentes said.

The data names eight requests from outside agencies, including the Texas Department of Public Safety and some local agencies like the Austin Fire Department, Georgetown Police Department and Hays County Sheriff's Office. The council questioned why months prior, APD stated there were zero requests when there had actually been three at the time.

Siegel worries that data could be used in cases regarding reproductive choice, gender-affirming care and immigration.

"Flock, this business that is doing business with Austin, also does business with ICE, you know, the Immigration and Customs Enforcement agency, and allows ICE access to basically [use] all of the data in the program. And that's being used to chase immigrant families, to disrupt the lives of workers," Siegel said.

Audit data shows out of roughly 75 million license plates scanned during a nine-month period, the devices aided in 165 arrests and possibly 134 prosecutions. That number could be lower because of how slowly the justice system moves.

The report also showed that compared to other programs in Houston, San Antonio and Seattle, APD's is consistent or more robust with more training and audits.

Bullock said the cameras are a force multiplier and compromises can be made instead of getting rid of what he calls a valuable tool.

"So it's a very effective piece of equipment and technology that helps officers in doing their job and to do it in a time where we're still suffering from a staffing shortage," Bullock said.

The city council is set to discuss the future of ALPRs at a work session on Tuesday and take a vote on Thursday.

